

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 757

Introduced by von Gillern, 4.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to revenue and taxation; to amend section
- 2 77-2704.28, Reissue Revised Statutes of Nebraska; to provide a sales
- 3 and use tax exemption for the purchase of an aircraft to be leased
- 4 between related companies; to provide an operative date; and to
- 5 repeal the original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 77-2704.28, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 77-2704.28 (1) A lease of property from a subsidiary to the parent
4 company, from a parent company to a subsidiary, from one subsidiary to
5 another subsidiary of the same parent company, or between brother-sister
6 companies shall not be subject to the sales and use tax imposed by the
7 Nebraska Revenue Act of 1967 if such property was either originally
8 acquired prior to June 1, 1967, or if acquired thereafter, the seller or
9 transferor directly or indirectly has previously paid a sales or use tax
10 thereon. Such lessor company shall have the same sales and use tax
11 liability on the purchase of property to be leased to the lessee company
12 as the lessee company would have paid if the lessee company had purchased
13 the property directly.

14 (2) The purchase of an aircraft for lease, including a lease from a
15 subsidiary to the parent company, from a parent company to a subsidiary,
16 from one subsidiary to another subsidiary of the same parent company, or
17 between brother-sister companies, shall not be subject to the sales and
18 use tax imposed by the Nebraska Revenue Act of 1967 if (a) the annual
19 amount of the gross receipts derived from leasing the aircraft, including
20 any amounts derived from leases to related parties, is equal to at least
21 seven and five-tenths percent of the net acquisition price for the
22 aircraft, including the value of any trade or exchange and excluding any
23 sales commission paid to a third party and (b) sales tax is collected and
24 remitted on the lease payments.

25 **Sec. 2.** This act becomes operative on October 1, 2026.

26 **Sec. 3.** Original section 77-2704.28, Reissue Revised Statutes of
27 Nebraska, is repealed.